



# ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

*57th Legislature, 2nd Regular Session*  
*Majority Research Staff*

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**[HB 2744](#): industrial commission; wages; adjudication**

## **RIVERO FLOOR AMENDMENT**

1. Removes the ICA's authority to enforce their determinations in an overtime wage adjudication case.
2. Modifies the definition of *overtime wage*.
3. Makes a clarifying change.

ADDITIONAL COW  
RIVERO FLOOR AMENDMENT  
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2744  
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.  
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.  
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.  
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.  
<<Green carets>> indicate a section added to the bill.  
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 23, chapter 1, article 1, Arizona Revised  
3 Statutes, is amended by adding section 23-111, to read:

4 23-111. Commission; investigation; overtime wage; employers;  
5 rules; definitions

6 A. THE COMMISSION MAY INVESTIGATE AND ADJUDICATE MATTERS THAT ARE  
7 RELATED TO OVERTIME WAGE PAY VIOLATIONS.

8 B. AN EMPLOYEE SHALL FILE A COMPLAINT WITH THE COMMISSION NOT MORE  
9 THAN ONE YEAR AFTER THE ALLEGED VIOLATION OCCURRED.

10 C. THE COMMISSION SHALL ADOPT RULES THAT PROVIDE ALL OF THE  
11 FOLLOWING:

12 1. THE PROCESS ON HOW AN EMPLOYEE OR THE EMPLOYEE'S AUTHORIZED  
13 REPRESENTATIVE SHALL FILE A COMPLAINT.

14 2. HOW AN EMPLOYER WILL RECEIVE NOTICE OF THE COMPLAINT FROM THE  
15 COMMISSION.

16 3. THE TIME FRAMES RELATED TO RESPONSE PERIODS.

17 4. THE COMMISSION'S INVESTIGATION PROCEDURES.

18 D. THE COMMISSION MAY DO ANY OF THE FOLLOWING IN AN OVERTIME WAGE  
19 ADJUDICATION CASE:

20 1. ADMINISTER OATHS AND AFFIRMATIONS.

21 2. ISSUE SUBPOENAS.

22 3. COMPEL THE ATTENDANCE OF WITNESSES.

23 4. COMPEL THE PRODUCTION OF RECORDS.

24 5. CONDUCT HEARINGS UNDER OATH.

25 6. ISSUE DETERMINATIONS [PURSUANT TO SECTION 44-1201] THAT INCLUDE  
26 AN ORDER FOR THE PAYMENT OF WAGES THAT ARE OWED, INCLUDING INTEREST.

27 ~~[7. ENFORCE OF THE COMMISSION'S DETERMINATIONS.]~~

1 E. THIS SECTION DOES NOT PREVENT AN EMPLOYEE FROM SEEKING OTHER  
2 REMEDIES AT LAW.

3 F. FOR THE PURPOSES OF THIS SECTION:

4 1. "COMMISSION" MEANS THE INDUSTRIAL COMMISSION OF ARIZONA.

5 2. "EMPLOYEE" HAS THE SAME MEANING PRESCRIBED IN SECTION 23-493.

6 3. "OVERTIME WAGE":

7 (a) MEANS WAGES THAT ARE OWED FOR HOURS WORKED IN EXCESS OF THE  
8 STATUTORY WORKWEEK AS DEFINED IN 29 CODE OF FEDERAL REGULATIONS SECTION  
9 778.105.

10 (b) INCLUDES PREMIUM PAY ~~[AS REQUIRED BY STATE LAW]~~ [AS AGREED ON  
11 BY THE EMPLOYEE AND EMPLOYER, BUT NOT LESS THAN ONE HUNDRED FIFTY PERCENT  
12 OF THE BASE RATE OF PAY].

13 Enroll and engross to conform

14 Amend title to conform

TONY RIVERO

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